

UPSC and SPSC - Learner-v2 Refreshed

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Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / WORKBOOK INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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UPSC and SPSC - Complete Uncompressed Learning Session

BASIC MCQS / REMEDIATION

Original MCQ loop - strict continuous A -> B -> C -> D rotation

OM1. Article 315 baseline

Which statement is constitutionally correct?

A. The Supreme Court determines the number of PSCs. B. There shall be a Public Service Commission for the Union and for each State, subject to Article 315. C. Parliament must create every SPSC by ordinary law. D. One Commission must serve the Union and all States.

Answer: B.

Explanation: [FACT] Article 315(1) establishes the Union and State Commission baseline, subject to the cooperative alternatives in the Article.

OM2. Creating a Joint State PSC

A Joint State Public Service Commission is provided for when:

A. the Inter-State Council recommends it. B. relevant State legislatures pass resolutions and Parliament provides by law. C. the UPSC Chair approves a merger. D. two Governors issue a joint executive order.

Answer: B.

Explanation: [FACT] Article 315(2) requires State legislative resolutions and a parliamentary law.

OM3. Appointment to a Joint Commission

The Chair and members of a Joint State Public Service Commission are appointed by:

A. Parliament's presiding officers. B. the Chief Justice of India. C. the Governors jointly. D. the President.

Answer: D.

Explanation: [FACT] Article 316(1) places UPSC and Joint Commission appointments with the President.

OM4. SPSC removal

An SPSC member can constitutionally be removed by:

A. the Chief Minister after Cabinet advice. B. the President under Article 317. C. the State legislature by special majority. D. the Governor alone.

Answer: B.

Explanation: [FACT] Appointment is by the Governor, but removal authority for every PSC is the President.

OM5. Experience rule

Article 316 requires that:

A. as nearly as may be one-half of members have at least ten years of specified government office. B. exactly half be serving IAS officers. C. every member be a retired civil servant. D. the Chair have twenty years of judicial service.

Answer: A.

Explanation: [FACT] The near-half ten-year rule is the only universal composition qualification in the constitutional text.

OM6. UPSC tenure

A UPSC member ordinarily serves:

A. six years from notification regardless of age. B. five years or age 62. C. until presidential pleasure ends. D. six years from entering office or age 65, whichever is earlier.

Answer: D.

Explanation: [FACT] Article 316(2) uses entry upon office and the earlier of six years or age 65.

OM7. SPSC resignation

An SPSC member resigns by writing addressed to:

A. the President. B. the Governor. C. the State legislature. D. the Chief Minister.

Answer: B.

Explanation: [FACT] The resignation addressee differs from the removal authority.

OM8. Reappointment rule

On expiry of term, a PSC member:

A. may be reappointed if the executive records reasons. B. may always obtain a second identical term. C. is barred from every different PSC office. D. is ineligible for reappointment to that office, subject to Article 319 progression.

Answer: D.

Explanation: [FACT] Article 316(3) bars the same office; Article 319 separately states permitted later PSC offices.

OM9. Acting UPSC Chair

When the UPSC Chair cannot perform duties, the acting arrangement is made by:

A. the senior-most member automatically. B. Parliament by resolution. C. the Cabinet Secretary from the civil service. D. the President from among other Commission members.

Answer: D.

Explanation: [FACT] Article 316(1A) requires Presidential appointment; automatic seniority is not the text.

OM10. Misbehaviour removal

Removal for misbehaviour requires:

A. a Presidential reference and Supreme Court inquiry/report. B. a parliamentary impeachment vote. C. a State Cabinet inquiry. D. a Commission majority.

Answer: A.

Explanation: [FACT] Article 317(1), not the judicial-removal address procedure, controls.

OM11. Direct clause (3) ground

Which is a direct Presidential removal ground under Article 317(3)?

A. an adverse annual report. B. refusal to accept an executive recommendation. C. infirmity of mind or body making the member unfit. D. disagreement with government policy.

Answer: C.

Explanation: [FACT] Insolvency, paid outside employment and qualifying infirmity are clause (3) grounds.

OM12. Joint Commission suspension

After a Supreme Court reference, a Joint Commission member may be suspended by:

A. the President. B. Parliament. C. the Governor chosen by rotation. D. any served State's Governor.

Answer: A.

Explanation: [FACT] Article 317(2) gives the President suspension power for Union and Joint Commissions.

OM13. Article 318 safeguard

Which condition is constitutionally protected?

A. Staff conditions can never be altered. B. Commission strength is permanently frozen. C. A member's service conditions cannot be varied to the member's disadvantage after appointment. D. Every member receives a judicial salary.

Answer: C.

Explanation: [FACT] The Article 318 proviso expressly protects members against disadvantageous variation.

OM14. Former SPSC Chair

A former SPSC Chair may be eligible to become:

A. an SPSC member in the same State. B. a member or Chair of the UPSC, or Chair of another SPSC. C. any Union Secretary. D. any public-sector chief executive.

Answer: B.

Explanation: [FACT] Article 319(b) permits the specified PSC offices and bars other government employment.

OM15. Former UPSC member

A former UPSC member other than the Chair may be eligible as:

A. the same UPSC member for a second term. B. any government adviser. C. UPSC Chair or Chair of an SPSC. D. any SPSC member.

Answer: C.

Explanation: [FACT] Article 319(c) does not permit ordinary SPSC membership.

OM16. Former UPSC Chair

On ceasing office, the UPSC Chair is:

A. ineligible for further employment under Union or State government. B. eligible to become a Union Secretary. C. eligible to chair any SPSC. D. eligible for any State government employment.

Answer: A.

Explanation: [FACT] Article 319(c) is the strictest of the four post-office clauses.

OM17. Examination duty

Article 320(1) makes it the duty of PSCs to:

A. appoint every selected candidate. B. conduct examinations for appointments to the respective Union/State services. C. frame all service laws. D. adjudicate all service disputes.

Answer: B.

Explanation: [FACT] Examination is a core duty; appointment and adjudication remain elsewhere.

OM18. Joint recruitment scheme

Under Article 320(2), UPSC assists:

A. one State whenever its SPSC is vacant. B. Parliament in recruiting judges. C. private employers seeking a common test. D. two or more requesting States with joint recruitment for specially qualified services.

Answer: D.

Explanation: [FACT] This is joint-scheme assistance, not a Joint Commission.

OM19. Consultation subject

Which matter is expressly within Article 320(3)?

A. deciding an election petition. B. fixing the Finance Commission formula. C. a qualifying official-duty legal-defence cost claim. D. delimitation of constituencies.

Answer: C.

Explanation: [FACT] Article 320(3)(a) is a frequently overlooked consultation subject.

OM20. Article 320(4)

Article 320(4) means that PSC consultation is not required regarding:

A. every application of Article 16. B. all promotions involving reservation. C. every appointment of an SC/ST candidate. D. the manner of making Article 16(4) provision or giving effect to Article 335.

Answer: D.

Explanation: [FACT] The exact textual scope must replace the loose statement that “reservation is outside UPSC”.

OM21. Exemption regulations

Regulations under the proviso to Article 320(3):

A. must be laid for at least fourteen days before the relevant legislature and are modifiable. B. permanently amend Article 320. C. require Supreme Court approval. D. are secret executive instructions.

Answer: A.

Explanation: [FACT] Article 320(5) creates legislative scrutiny of delegated exemptions.

OM22. Nature of advice

The safest statement is:

A. government may ignore the Commission without accountability. B. non-consultation automatically voids every action. C. PSC advice always binds the government. D. Article 320 consultation is generally directory; advice is not a legal veto.

Answer: D.

Explanation: [FACT] *Manbodhan Lal* establishes directory consultation while recognising its constitutional importance.

OM23. Article 321

Additional PSC functions concerning local authorities or statutory bodies may be conferred by:

A. an Act of Parliament or the competent State legislature. B. an annual report. C. a Commission resolution alone. D. a Supreme Court practice direction.

Answer: A.

Explanation: [FACT] Article 321 supplies the legislative-extension route.

OM24. Charged expenditure

Under Article 322, SPSC expenses are charged on:

A. the Consolidated Fund of the State. B. a Commission fee fund. C. the Consolidated Fund of India. D. the Public Account of the State.

Answer: A.

Explanation: [FACT] Charged expenditure is not submitted to vote, though it may be discussed.

OM25. UPSC report

Where UPSC advice is not accepted, Article 323 requires:

A. a national referendum. B. the President to reverse the government. C. a memorandum explaining cases and reasons to accompany the report laid before Parliament. D. automatic judicial invalidation.

Answer: C.

Explanation: [FACT] Reporting and reasons are the constitutional accountability substitute for binding advice.

OM26. Joint Commission reporting

A Joint Commission reports:

A. to the Inter-State Council. B. to each served State's Governor on work relating to that State. C. only to Parliament. D. only to the President.

Answer: B.

Explanation: [FACT] Each Governor lays the relevant report and non-acceptance memorandum before that State legislature.

OM27. UPSC and DoPT

Which allocation is correct?

A. CAT appoints civil servants. B. DoPT conducts every UPSC examination. C. UPSC manages all cadres and training. D. UPSC recruits/advises; government/DoPT owns much rule, cadre and personnel management.

Answer: D.

Explanation: [FACT] The constitutional Commission is not the entire personnel administration.

OM28. Select-list right

Shankarsan Dash establishes that:

A. government discretion is immune from equality review. B. selection creates property in the post. C. inclusion in a select list creates no indefeasible appointment right, though action cannot be arbitrary. D. every notified vacancy must be filled.

Answer: C.

Explanation: [FACT] Fair consideration and non-arbitrariness survive without an automatic appointment right.

OM29. Judicial review of selection

Courts may properly interfere where:

A. the court wants to design a new service. B. interview answers could have been marked differently. C. a judge personally prefers another candidate. D. statutory rules are seriously violated or mala fides/bias is shown.

Answer: D.

Explanation: [FACT] *M.V. Thimmaiah* protects expert merits while preserving review for legal defects.

OM30. Manbodhan Lal

The case is chiefly associated with:

A. creation of a Joint Commission. B. charged expenditure. C. Article 320 consultation being directory rather than mandatory. D. the age ceiling of SPSC members.

Answer: C.

Explanation: [FACT] The decision arose in the disciplinary-consultation context.

OM31. Mid-process criteria

Which principle follows from *K. Manjusree* and *Tej Prakash Pathak*?

A. criteria may always change before results. B. eligibility/selection criteria cannot be altered mid-process unless lawful rules permit a non-arbitrary course. C. candidates control recruitment rules. D. every clarification is illegal.

Answer: B.

Explanation: [FACT] The doctrine is anchored in equal, predictable public employment under Articles 14 and 16.

OM32. Public Examinations Act coverage

The 2024 Act's Schedule:

A. expressly includes examinations conducted by UPSC. B. excludes constitutional bodies. C. covers UPSC only after a separate State notification. D. covers only school boards.

Answer: A.

Explanation: [CURRENT] UPSC is item 1 in the Schedule.

OM33. Monitoring rule

The Public Examinations Rules, 2024 require:

A. all exams to use one private vendor. B. each public examination authority to establish an implementation-monitoring mechanism. C. abolition of offline examinations. D. the Supreme Court to audit every examination.

Answer: B.

Explanation: [CURRENT] Rule 9 supplies the monitoring duty.

OM34. 15 March 2024 consultation amendment

The precise statement is:

A. it applies to every SPSC. B. it abolishes Article 320. C. it exempts specified Group A/B posts up to level 13A filled through named modes. D. it exempts every lateral appointment.

Answer: C.

Explanation: [CURRENT] Post level and mode are essential; "lateral entry" is not the regulation's universal label.

OM35. Tribunal boundary

Which institution principally adjudicates covered Union recruitment/service disputes at first instance?

A. Finance Commission. B. Election Commission. C. Central Administrative Tribunal under its statutory jurisdiction. D. UPSC.

Answer: C.

Explanation: [FACT] Commission and tribunal functions are institutionally distinct.

OM36. Independence assessment

Which conclusion is strongest?

A. charged expenditure alone guarantees integrity. B. appointment quality, tenure, finance, staff, secure process, reporting and review interact. C. non-binding advice means no independence exists. D. Presidential removal makes appointments irrelevant.

Answer: B.

Explanation: [ANALYSIS] Independence is systemic, not a one-clause label.

Remedial MCQs - strict continuation A -> B -> C -> D rotation

RM1. Joint Commission status

The best description of a Joint State PSC is:

A. identical to UPSC assistance under Article 315(4). B. automatically created when two Governors agree. C. constitutionally contemplated and brought into operation by parliamentary law after State resolutions. D. purely executive and extra-constitutional.

Answer: C.

Explanation: [FACT] This formulation preserves both constitutional source and statutory creating instrument.

RM2. Suspension trap

After an Article 317 reference concerning an SPSC member, suspension may be ordered by:

A. the SPSC Chair. B. the President only. C. the State legislature. D. the Governor.

Answer: D.

Explanation: [FACT] Final removal remains with the President; suspension authority is differentiated.

RM3. Contract interest

A PSC member's prohibited interest in a government contract is:

A. deemed misbehaviour subject to the Article 317(1) route, with the company-membership exception. B. a direct insolvency ground. C. irrelevant after disclosure. D. decided finally by the Commission.

Answer: A.

Explanation: [FACT] Article 317(4) supplies the deemed-misbehaviour rule.

RM4. Same-office trap

Article 316(3) means:

A. no former member may ever serve another PSC. B. reappointment to the same office is barred, while exact different-office eligibility is separately tested. C. Article 319 is redundant. D. a second term is allowed after a gap.

Answer: B.

Explanation: [FACT] The two Articles must be read together.

RM5. Advice-accountability link

If government rejects PSC advice, the constitutional model relies especially on:

A. reasons and the Article 323 report/memorandum route. B. Commission veto. C. dismissal of the minister. D. automatic contempt.

Answer: A.

Explanation: [ANALYSIS] Public reason and legislative scrutiny give advisory power consequence.

RM6. Reservation nuance

Article 320(4):

A. excludes every SC/ST candidate from Commission recruitment. B. prohibits reservation. C. removes the requirement of PSC consultation on the specified manner of Article 16(4)/335 implementation. D. permits PSC to ignore a roster.

Answer: C.

Explanation: [FACT] The exception concerns required consultation, not substantive equality law.

RM7. Lateral-entry trap

The correct method is to:

A. treat media terminology as the legal rule. B. check post, level, recruitment rule, mode, consultation regulation, reservation and transparency. C. assume every lateral post is UPSC-exempt. D. assume every contract post is unconstitutional.

Answer: B.

Explanation: [ANALYSIS] Post-specific legal analysis prevents overstatement in either direction.

RM8. Appointment-right trap

A selected candidate:

A. can compel filling of every advertised vacancy. B. cannot be rejected for discovered ineligibility. C. owns the vacancy. D. has no automatic appointment right but is protected against arbitrary State action.

Answer: D.

Explanation: [FACT] This is the calibrated *Shankarsan Dash* rule.

RM9. Court's role

In reviewing PSC selection, a court should principally:

A. test legality, fairness, bias and rule compliance. B. fill vacancies directly whenever possible. C. substitute its preferred scoring system. D. conduct a new viva voce.

Answer: A.

Explanation: [FACT] Review is constitutional supervision, not merit appeal.

RM10. Public-examination law

The 2024 Act:

A. replaces Articles 315-323. B. governs only private coaching tests. C. guarantees every exam will be leak-proof. D. adds anti-unfair-means offences and controls to the existing recruitment framework.

Answer: D.

Explanation: [CURRENT] It supplements, rather than constitutionalises or perfects, exam administration.

RM11. SPSC reform

Which is a calibrated integrity reform?

A. executive power to alter criteria after the exam. B. removal of judicial review. C. timely criteria-based appointments, conflict controls, secure systems and reasoned grievance handling. D. permanent secrecy over results.

Answer: C.

Explanation: [ANALYSIS] Reform must strengthen capacity and accountability without executive capture.

RM12. Examiner-grade method

The best paragraph sequence is:

A. claim -> named evidence -> analysis -> qualification. B. definition -> copied list -> absolute claim. C. slogan -> allegation -> prediction. D. case name -> unrelated statistic -> wish.

Answer: A.

Explanation: [ANALYSIS] This pattern demonstrates control, relevance and balance.

PYQS AND ANSWER PRACTICE

[FACT] This H2 deliberately begins the practice material so that `markdown_learning_pdf.py --mode workbook` extracts the complete solved workbook and stops before the final consolidated register notes.

[FACT] The recent local routing ledgers and integration audits for **2018-2023, 2024-2025 and 2026** were searched precisely for Public Service Commission, Article 315, Article 320, SPSC and Joint State Public Service Commission.

[LIMIT] **No direct standalone UPSC Prelims or GS-II Mains PYQ on the UPSC/SPSC constitutional architecture was verified in those routed ledgers.** Therefore, this package does not manufacture an official question, year, wording or key.

[LIMIT] Adjacent verified questions on civil-service reform, ethos of civil services, administrative tribunals, district-judge recruitment and bank-chair selection remain with their audited Governance, Public Services, Judiciary, Tribunal or Economy owners. They are not relabelled as PSC PYQs merely because recruitment is an adjacent concept.

Visual 57 - PYQ audit outcome

Ledger window	Exact PSC route found?	Package action
2018-2023 Prelims/Mains	no direct standalone route	state absence; do not invent
2024-2025 Prelims/Mains	no direct standalone route	state absence; do not invent
2026 ledgers/audit	no routed PSC question	state absence; do not invent
adjacent recruitment/service demands	yes, but owned elsewhere	cross-link, not duplicate

Original solved Mains practice

M1. Article 317 does not provide one uniform removal process for every allegation against a Public Service Commission member. Explain. (10 marks, 150 words)

Model solution

Thesis: [FACT] Article 317 centralises final removal in the President but differentiates misbehaviour from three direct constitutional grounds; [ANALYSIS] that distinction combines tenure security with workable incapacity and conflict controls.

Misbehaviour: [FACT] Under clause (1), the President refers the allegation to the Supreme Court, which conducts an inquiry under the Article 145 procedure and reports whether the member ought to be removed. [FACT] Clause (4) deems prohibited interest in a government contract to be misbehaviour.

Direct grounds: [FACT] Clause (3) allows Presidential removal for adjudged insolvency, paid employment outside office, or unfitness due to infirmity of mind or body without using the separate clause (1) inquiry route.

Suspension: [FACT] Once reference is made, the President may suspend a UPSC/Joint Commission member, while the Governor may suspend an SPSC member, until the President acts on the Court's report.

Qualification: [LIMIT] The Governor never finally removes an SPSC member, and Parliament's judicial-address procedure is inapplicable.

Verdict: Article 317 protects against retaliatory removal without making the office incapable of responding to objective disqualification or incapacity.

Outstanding-answer test: It names all four clauses, distinguishes removal from suspension and avoids importing “impeachment”.

M2. Public Service Commission advice is non-binding, yet constitutionally consequential. Comment. (10 marks, 150 words)

Model solution

Thesis: [FACT] Article 320 creates a constitutional consultation voice rather than a veto; [ANALYSIS] its consequence arises from expertise, convention and public accountability.

Scope: [FACT] Consultation covers recruitment methods, appointment/promotion/transfer principles and suitability, disciplinary matters, official-duty legal-cost claims and injury pensions. This gives the Commission structured access before important personnel decisions.

Legal limit: [FACT] *State of U.P. v. Manbodhan Lal Srivastava* held Article 320(3) directory, so non-consultation does not automatically invalidate executive action. Valid regulations may also specify consultation exceptions.

Accountability: [FACT] Article 323 requires annual reports and memoranda explaining cases and reasons where advice was not accepted. [ANALYSIS] Rejection thus becomes capable of legislative and public scrutiny.

Qualification: [LIMIT] Directory does not mean dispensable at will; arbitrariness, mala fides and rule violations remain reviewable.

Verdict: The Commission influences by reason and disclosure, not command—a soft legal power strengthened by hard reporting duties.

Outstanding-answer test: It links Articles 320 and 323 and states *Manbodhan Lal* without saying advice is meaningless.

M3. A Joint State Public Service Commission is neither purely statutory nor automatically created by the Constitution. Clarify. (10 marks, 150 words)

Model solution

Thesis: [FACT] Article 315(2) supplies the constitutional design, while a parliamentary law after State legislative resolutions supplies the operational creating instrument.

Constitutional foundation: Two or more States may agree to a common Commission. Each relevant House—or each House in a bicameral State—must pass the resolution contemplated by Article 315(2).

Statutory activation: Parliament may then by law provide for appointment and incidental/consequential matters. [FACT] The President appoints its Chair/members under Article 316, regulates it under Article 318 and may suspend its member after an Article 317 reference.

Distinctions: [FACT] It differs from UPSC serving a State under Article 315(4) and from UPSC assistance for a joint recruitment scheme under Article 320(2).

Qualification: [LIMIT] Calling it merely “statutory” can hide its constitutional status; calling it self-executing ignores the required law.

Verdict: It is best described as a constitutionally authorised common Commission instantiated by parliamentary statute through State consent.

Outstanding-answer test: It separates source, trigger, law, appointing authority and two neighbouring devices.

M4. Examine the constitutional safeguards and practical limits of UPSC/SPSC independence. (15 marks, 250 words)

Model solution

Thesis: [ANALYSIS] PSC independence is strongest at removal and finance but incomplete across the institutional lifecycle; appointment quality, staff, technology and compliance conventions determine whether constitutional insulation becomes practical autonomy.

Constitutional safeguards

1. [FACT] Article 315 creates the Commissions directly and prevents ordinary executive abolition of their core.
2. [FACT] Article 316 fixes six-year/age-limited tenure, reducing pleasure-based insecurity.
3. [FACT] Article 317 reserves final removal to the President and subjects misbehaviour to Supreme Court inquiry.
4. [FACT] Article 318 bars disadvantageous variation of member service conditions.
5. [FACT] Article 319 narrows post-office government employment, reducing favour-seeking.
6. [FACT] Article 322 charges UPSC/SPSC expenditure on the relevant Consolidated Fund.
7. [FACT] Article 323 requires reporting and reasons for rejected advice.

Practical limits

- [FACT] President/Governor appoint members without an adopted constitutional collegium.
- [FACT] Article 320 advice is generally non-binding after *Manbodhan Lal*.
- [ANALYSIS] Executive control over staff, technology procurement and timely vacancies can weaken an otherwise protected body.
- [ANALYSIS] SPSC quality may vary with local political networks, secretariat capacity and examination-security systems.

Counterpoint: [ANALYSIS] Binding advice on every matter could transfer democratic personnel responsibility to an unelected commission.

Reforms: publish appointment criteria and conflicts, fill vacancies predictably, strengthen rule-based staff and cyber capacity, improve speaking grievance decisions, and ensure legislative committees examine Article 323 memoranda.

Qualification: [LIMIT] No speculative collegium should be presented as current law.

Verdict: The Constitution protects the Commission from dismissal; governance reform must protect it from dependence, delay and distrust.

Outstanding-answer test: It uses at least five exact Articles, presents both institutional case and democratic limit, and offers implementable reforms.

M5. Courts review Public Service Commission selections, but they do not sit as appellate selection boards. Analyse. (15 marks, 250 words)

Model solution

Thesis: [FACT] Judicial review protects Articles 14 and 16, statutory rules and procedural fairness; [ANALYSIS] judicial restraint simultaneously protects expert comparative assessment.

Reviewable defects

- [FACT] *Ashok Kumar Yadav* demonstrates that PSC selection remains reviewable for bias and arbitrary interview design.
- [FACT] *K. Manjusree* invalidated a minimum interview benchmark introduced after the process.
- [CURRENT] *Tej Prakash Pathak*, 2024 INSC 847, Constitution Bench, reaffirms stability of eligibility/selection rules unless the governing framework permits a lawful, non-arbitrary change.
- [FACT] Mala fides, unequal treatment, ineligible decision-makers and serious statutory-rule violations remain review grounds.

Restraint

[FACT] *M.V. Thimmaiah v. UPSC* states that courts ordinarily do not act as appellate authorities over expert recommendations; review is exceptional for mala fides or serious rule breach.

Appointment boundary

[FACT] *Shankarsan Dash* denies an infeasible appointment right merely from select-list inclusion. Yet government cannot arbitrarily refuse appointment or selectively apply its decision.

Institutional reason: [ANALYSIS] Judges are equipped to decide legality, not to reconstruct specialist scoring, interviews and service suitability.

Qualification: [LIMIT] “Expert opinion” cannot shield conflict of interest, undisclosed criteria or discrimination.

Verdict: The correct line is **merit deference with legality control**: courts do not choose candidates, but they ensure the State chooses by known, equal and lawful rules.

Outstanding-answer test: It gives four named cases with propositions and distinguishes selection, recommendation and appointment.

M6. Examination integrity requires more than criminal punishment. Discuss with reference to the Public Examinations framework and PSC governance. (15 marks, 250 words)

Model solution

Thesis: [CURRENT] The Public Examinations Act and Rules, 2024 add a strong anti-unfair-means framework; [ANALYSIS] deterrence succeeds only when joined to prevention, detection, transparent remedy and institutional capacity.

Legal layer

[FACT] The Act’s Schedule expressly covers UPSC examinations. Section 3 includes leakage, unauthorised access/assistance, answer-sheet and assessment tampering, security/network manipulation, fake sites, fake exams and fake offer letters. Offences are cognizable, non-bailable and non-compoundable; service-provider and organised-crime liability addresses systemic wrongdoing.

Preventive layer

[CURRENT] Rule 5 contemplates CBT standards for centres, nodes, servers, networks, platforms, readiness audits, biometrics, security, question loading, invigilation and post-exam checks. Rule 9 requires implementation monitoring.

Governance layer

- segment question access and retain audit logs;
- independently test high-risk digital systems and vendors;
- publish stable criteria, calendars and prompt reasons for delay;
- provide accessible grievance and answer-key/result representation channels;
- prepare continuity/re-examination protocols that protect innocent candidates.

Qualification: [LIMIT] Maximum secrecy can conceal weak governance; maximum disclosure can reveal attack surfaces. Privacy, disability accommodation and natural justice must remain intact.

Verdict: Criminal law punishes the breach; trustworthy PSC design prevents it, detects it early and gives candidates a lawful remedy.

Outstanding-answer test: It names the Act’s UPSC Schedule, verified Rules and a full prevent-detect-report-remedy cycle.

M7. “The SPSC is State-rooted but Union-insulated.” Evaluate this federal design and suggest reforms. (20 marks, 300 words)

Model solution

Thesis: [FACT] The Governor appoints SPSC members and receives their annual report, while the President alone removes them; [ANALYSIS] this asymmetry combines State recruitment ownership with protection from immediate State executive retaliation.

State-rooted elements

1. [FACT] Article 315 provides an SPSC for each State.
2. [FACT] The Governor appoints the Chair and members under Article 316.
3. [FACT] The Governor determines membership/staff conditions by regulations under Article 318.
4. [FACT] The SPSC recruits for State services and reports to the Governor under Article 323.
5. [FACT] The State legislature receives the report and non-acceptance memorandum.

Union-insulated elements

1. [FACT] Only the President removes an SPSC member under Article 317.

2. [FACT] Misbehaviour requires Supreme Court inquiry.
3. [FACT] The State government cannot use removal simply because advice is inconvenient.
4. [FACT] The constitutional age/tenure, service-condition and post-office rules limit local executive control.

Federal flexibility

[FACT] States may seek a Joint Commission through resolutions and parliamentary law, use UPSC assistance under Article 315(4), or request joint-scheme help under Article 320(2).

Problems

[ANALYSIS] Executive appointment dominance, vacancies, local conflicts, weak vendor/security capacity, shifting criteria and poor grievance systems can defeat formal insulation. Presidential removal is a last-resort safeguard, not daily quality assurance.

Reforms

- publish qualification, integrity and conflict criteria for appointments;
- create predictable appointment/vacancy calendars;
- professionalise permanent secretariats and digital-security cells;
- adopt national-conference standards while preserving State adaptation;
- publish reasons, marks/cut-offs and grievance outcomes within law;
- strengthen legislative committee scrutiny of Article 323 reports.

Qualification: [LIMIT] A Union-controlled appointment system would over-correct the State problem and weaken federal ownership; no adopted collegium should be assumed.

Verdict: The design wisely separates State connection from State removal control. Its unfinished task is to add transparent appointment and operational capacity to constitutional tenure security.

Outstanding-answer test: It evaluates both federal poles, uses Articles 315-323 and rejects both centralisation and local capture.

M8. Critically examine whether lateral recruitment is inconsistent with the constitutional role of the UPSC and the equality code in public employment. (20 marks, 300 words)

Model solution

Thesis: [FACT] Lateral recruitment is not per se unconstitutional and UPSC has no monopoly over every post; [ANALYSIS] legality depends on post-specific recruitment rules, consultation requirements, Articles 14 and 16, reservation, transparent criteria and non-arbitrary selection.

Why it may be legitimate

- [FACT] Article 309 permits recruitment and service conditions to be regulated by law/rules.
- [FACT] Article 320 envisages examinations and consultation but also constitutionally permits exemption regulations.
- [ANALYSIS] Specialist, time-bound or scarce-skill posts may justify direct selection, deputation or contract where rules authorise it.
- [ANALYSIS] An independent expert/UPSC role can strengthen credibility even when a competitive generalist examination is unsuitable.

Constitutional concerns

- bypassing a valid consultation requirement;
- vague or tailored eligibility criteria;
- changing benchmarks after applications;
- inadequate advertisement and conflict disclosure;
- arbitrary shortlisting/interview;
- evasion rather than lawful application of reservation/equal-opportunity rules;
- repeated temporary hiring that replaces rule-bound career structures.

Current regulatory nuance

[CURRENT] G.S.R. 203(E), 15 March 2024, exempts specified Group A/B posts up to level 13A filled through named deputation/re-employment, short-term-contract, absorption or composite modes. [LIMIT] It is not a blanket “lateral entry exemption”; higher/different posts require their own legal analysis.

Judicial control

[FACT] *K. Manjusree* and *Tej Prakash Pathak* require stable criteria; *M.V. Thimmaiah* supports merit deference subject to legality; *Shankarsan Dash* denies an automatic appointment right but not equality review.

Reform design

Publish a post-wise skills gap, recruitment rule and reservation position; use wide notice; pre-declare scoring and conflicts; include independent expertise; record reasons; cap tenure with evaluation; publish aggregate outcomes; preserve review.

Qualification: [LIMIT] Neither “all expertise lies outside government” nor “only career examination creates merit” is defensible.

Verdict: Lateral recruitment can supplement the constitutional merit system only when it is more transparent and rule-bound than patronage-not a label used to escape it.

Outstanding-answer test: It avoids a yes/no slogan, cites Articles 309/320, the exact 2024 regulation, reservation, four cases and a workable design.